FEDERAL COURT OF AUSTRALIA

NOTICE OF PROPOSED SETTLEMENT

VID982/2024 Knox & Anor v Commonwealth of Australia & Ors

("Robodebt Class Action Appeal")

and

VID1252/2019 Prygodicz & Ors v Commonwealth of Australia

("Robodebt Class Action")

This notice has important information you need to know about a proposed $548.5 million settlement of the Robodebt Class Action Appeal and the Robodebt Class Action.

It has been sent to you because you are a Group Member and you may be entitled to receive compensation.

To claim compensation, you <u>must</u> register by 6 March 2026. See Section N of this notice for information about how to register. If you do not register by 6 March 2026, you will not be entitled to claim compensation.

You should read this notice carefully, because your legal rights may be affected by the proposed settlement, even if you do not register.

If you do not understand the information in this notice or need help, you should contact the Applicants' solicitors, Gordon Legal at robodebt@gordonlegal.com.au or 1300 001 356 or seek independent legal advice from another lawyer.

A. WHY IS THIS NOTICE IMPORTANT?

1. You are receiving this notice (or have been asked to review this notice) because you have been identified as a Group Member (or former Group Member) in the Robodebt Class Action and Robodebt Class Action Appeal. This notice has been issued pursuant

to orders of the Federal Court of Australia (**Court**). It contains important information about a proposed settlement including:

a. the key terms of the proposed settlement;

b. whether you are eligible to receive compensation from the settlement fund and what you **must** do to receive it; and

c. what you need to do if you wish to object to the proposed settlement or to any aspect of it.

2. Any questions concerning the matters contained in this notice should not be directed to the Court or Services Australia (Centrelink). You should contact the Applicants' solicitors, Gordon Legal at **robodebt@gordonlegal.com.au** or 1300 001 356 or seek independent legal advice from another lawyer.

B. WHAT IS A CLASS ACTION?

3. A class action is a legal proceeding brought by one or more persons (called the applicant/s) on their own behalf and on behalf of a class of people (called Group Members), where the applicant/s and the Group Members have similar claims against another person/s (called the respondent/s).

4. Group Members are bound by any judgment or settlement in the class action, unless they have opted out of the proceeding. This means that:

a. if the class action is successful, Group Members may be eligible for the benefit of any settlement or order of the Court;

b. if the class action is unsuccessful, Group Members are bound by that result; and

c. regardless of the outcome, a Group Member **cannot** pursue claims against the respondent in separate legal proceedings if those claims were brought in the class action proceeding, unless the Group Member has opted out of the class action.

C. WHAT IS THE ROBODEBT CLASS ACTION?

5. In 2019, a class action was commenced by Katherine Prygodicz and others (the **Prygodicz Applicants**), on behalf of all Group Members, against the Commonwealth of Australia, the legal entity responsible for Centrelink. That class action was known as the **Robodebt Class Action** or the **Prygodicz Proceeding**.

6. The Robodebt Class Action alleged that, since 1 July 2015, Centrelink had sent to Group Members a notification (including by postal mail, email, 'myGov' or 'Centrelink Express'):

a. referring to a difference between the income information obtained by Centrelink from the Australian Taxation Office (**ATO**) and that used by Centrelink in assessing the entitlements to certain social security payments; and

b. requesting, requiring or reminding the recipient to check, confirm, or update employment income information (**Robodebt Notification**).

7. The Robodebt Class Action also alleged that, by or following a Robodebt Notification, the Commonwealth asserted that there was an overpayment of one or more specified social security payments, which were recoverable by the Commonwealth as a debt (**Asserted Overpayment Debt**). Where the Asserted Overpayment Debt was partly or wholly raised by or based upon averaged ATO income information used to calculate a person's fortnightly income, without evidence of the frequency or regularity with which income was earned, the debt was a **Robodebt-raised Debt**.

8. Following a Robodebt Notification and the assertion of a Robodebt-raised Debt, Group Members, in many cases, either:

   a. paid;

   b. had paid on their behalf; or

   c. had recovered from them (by, for example, demands from debt collectors, or having had their tax returns garnished)

   amounts for these claimed overpayments. The Robodebt Class Action alleged that Centrelink had no right to demand or recover any part of these Robodebt-raised Debts, and that in doing so, the Commonwealth had been unjustly enriched, and/or had been negligent.

9. In 2020, the parties to the Robodebt Class Action agreed to settle the proceeding without a trial. The Court approved the settlement of the Robodebt Class Action on 11 June 2021. Settlement payments were made to eligible Group Members in 2022.

D. WHAT IS THE ROBODEBT CLASS ACTION APPEAL?

10. In 2024, Nathan Knox and David Mandell (the **Knox Applicants**) applied to the Court on behalf of Group Members, seeking an extension of time to commence an appeal from the orders approving the settlement of the Robodebt Class Action (the application being the **Robodebt Class Action Appeal** or the **Knox Proceeding**).

11. The Knox Applicants' position was that the settlement of the Prygodicz Proceeding did not adequately compensate people for the harm caused by the Robodebt System in light of what became known after the settlement. Specifically, at the time of the settlement, Group Members (and their lawyers) did not have access to important evidence that was produced to the Royal Commission into the Robodebt Scheme because it was not relevant to the claim made in the Robodebt Class Action. Having

regard to this further evidence, the Knox Applicants believed that the settlement of the Prygodicz Proceeding was not fair and reasonable.

12. The purpose of the Robodebt Class Action Appeal was to obtain orders from the Court setting aside the settlement of the Prygodicz Proceeding which would allow new claims to be made in that proceeding. If those new claims were successful, additional compensation might have been payable to Group Members.

E. THE PROPOSED KNOX SETTLEMENT

13. The parties have reached an agreement to settle the Robodebt Class Action and the Robodebt Class Action Appeal.

14. Under the proposed Knox settlement, the Commonwealth has agreed that it will pay $548,500,000 (**Settlement Sum**) comprising the following amounts:

    a. an amount of $475,000,000 to compensate eligible Group Members (**Compensation Sum**);

    b. an amount not exceeding $13,500,000 (inclusive of GST) in full and final satisfaction of the Applicants' professional fees and disbursements incurred in the course of the Robodebt Class Action Appeal and to be incurred in the Robodebt Class Action (**Legal Costs Sum**); and

    c. an amount not exceeding $60,000,000 (inclusive of GST) in respect of the costs of administration of the Settlement Scheme (**Administration Costs Sum**).

15. The Applicants and Omni Bridgeway (the litigation funder) will seek the Court's approval of the Compensation Sum being divided as follows:

    a. $403,550,000 (plus any interest which accrues on that amount) to be available to pay the claims of eligible Group Members;

    b. $71,250,000 to be paid as a Funding Commission (described at paragraphs 44 to 51 below); and

    c. $200,000 to be paid (in total) to the eight individual Knox Applicants and Prygodicz Applicants to reimburse them for their time and out-of-pocket expenses in performing their role as representatives of Group Members.

16. The Settlement Sum of $548,500,000 is <u>in addition</u> to amounts already paid to Group Members in the Prygodicz Proceeding, Asserted Overpayment Debts previously repaid to Group Members and amounts previously claimed by the Commonwealth in the Prygodicz Proceeding which the Commonwealth agreed as part of that settlement not to pursue. The Commonwealth will not seek to recover sums paid to Group Members pursuant to the original settlement of the Robodebt Class Action or to recover invalid debts.

17. The parties have also agreed that:

    a. the proposed settlement is without any admission by the Commonwealth as to any liability;

    b. an amount not exceeding $200,000 in total, and subject to the approval of the Court, will be deducted from the Compensation Sum to reimburse each of the eight individual Knox Applicants and Prygodicz Applicants for their time and out-of-pocket expenses in performing their role as representatives of Group Members.

18. The proposed settlement requires Court approval to be effective. The Court will decide whether to approve the settlement at a hearing to be held over two days, commencing at **10.15am** on **22 June 2026** in the Federal Court of Australia, in Melbourne. You can attend the hearing if you want to. Further details about the hearing are provided below.

19. The proposed settlement includes a scheme for the distribution of the Compensation Sum (**Settlement Scheme**), which will be considered as part of the Court approval process.

F. CURRENT COURT APPLICATIONS

20. The Applicants, with the consent of the Commonwealth, have applied to the Court for:

    a. approval of the settlement, in such a way that it replaces the Court's previous settlement approval of the Robodebt Class Action in June 2021, but without affecting the payments made under the old settlement scheme;

    b. Category 5 Group Members to be added as Group Members only if they chose to register in the Prygodicz Proceeding (so that they can participate in the settlement);

    c. opportunity for those who previously opted out of the Robodebt Class Action to apply to be reinstated as Group Members (if they wish to participate in the new settlement, but they will not be able to participate in the first settlement scheme); and

21. The Court will decide whether to approve the settlement, and make the other approvals above, at the hearing to be held over two days, commencing at **10.15am** on **22 June 2026**.

22. If the Court grants the approvals:

    a. the Settlement Scheme will proceed;

    b. Category 5 Group Members who have registered in the Prygodicz Proceeding will be entitled to participate in the Settlement Scheme and will be bound by the terms of the proposed settlement;

c. those who previously opted out of the Robodebt Class Action but who are approved to be reinstated as Group Members will be entitled to participate in the new Settlement Scheme and will be bound by the terms of the proposed settlement, but will not be able to participate in the first settlement scheme;

d. all other Group Members will be entitled to participate in the Settlement Scheme and will be bound by the terms of the proposed settlement (unless they opt-out);

e. those who opt-out (or, for those who previously opted-out of the Robodebt Class Action who do not request to be reinstated) will not be entitled to participate in the Settlement Scheme and will not be bound by the terms of the proposed settlement; and

f. at the conclusion of the Settlement Scheme, the Robodebt Class Action and Robodebt Class Action Appeal will be discontinued or dismissed.

23. If the Court does not grant the approvals after the hearing commencing at **10.15am** on **22 June 2026**:

a. the Settlement Scheme will not occur and there will be no distribution of payments to Group Members;

b. no Category 5 Group Members will be able to opt in;

c. those who previously opted out of the Robodebt Class Action will not be reinstated as Group Members;

d. all other Group Members will remain Group Members in the Robodebt Class Action and Robodebt Class Action Appeal;

e. the Applicants may seek to continue the Robodebt Class Action Appeal on behalf of the Group Members.

G. THE KNOX SETTLEMENT SCHEME

24. **To participate in the Settlement Scheme, you must register and make a claim, as explained below.**

25. Under the Settlement Scheme, the Scheme Administrator will assess and, where a claim is established, pay the claims of eligible Group Members as described below.

26. Group Members may fall into (one or more of) the five different categories (**Categories**). A Group Member may fall into multiple Categories because they had multiple debts. The Categories are as follows:

a. **Category 1 Group Member**: means a Group Member whose Asserted Overpayment Debt(s) was partly or wholly a Robodebt-raised Debt, no part of

which Asserted Overpayment Debt has been received or recovered by the Commonwealth.

b. **Category 2 Group Member**: means a Group Member whose Asserted Overpayment Debt(s) was wholly a Robodebt-raised debt, part or all of which has been recovered or received by the Commonwealth.

c. **Category 3(a) Group Member**: means a Group Member whose Asserted Overpayment Debt(s) was initially a Robodebt-raised Debt, was then recalculated other than on the exclusive basis of averaged ATO income information, and the recalculated debt was less than the amount recovered or received by the Commonwealth.

d. **Category 3(b) Group Member**: means a Group Member whose Asserted Overpayment Debt(s) was initially a Robodebt-raised Debt, was then recalculated other than on the exclusive basis of averaged ATO income information, and the recalculated debt was equal to or more than the amount recovered or received by the Commonwealth.

e. **Category 4 Group Member**: means a Group Member whose Asserted Overpayment Debt was neither wholly nor partly a Robodebt-raised debt but which was determined and asserted by the Commonwealth based upon income information provided by or on behalf of the Group Member in response to a Robodebt Notification.

f. **Category 5 Group Member**: means a Group Member who (a) was in a close personal relationship with a deceased Category 1 Group Member, Category 2 Group Member, Category 3(a) Group Member or Category 3(b) Group Member at the time of the death of the latter person, where the assertion of a Robodebt-raised Debt materially contributed to the death of the latter person; and (b) who has suffered a recognised psychiatric illness or condition which has been materially contributed to by the death of the latter person; and (c) who registers in to the Prygodicz Proceeding by **6 March 2026**.

27. Category 5 Group Members will be required to complete a Registration Form and to satisfy the Scheme Administrator that they fall within the terms of that category.

28. All persons who register will be asked whether they want to request a "**Fixed Payment**" or to have an "**Individual Assessment**" of their claim by the Scheme Administrator. They must choose how to claim by giving a Notice of Election to the Scheme Administrator.

29. A Group Member's Category determines the type of Fixed Payment (if any) they are eligible for.

30. People who are only Category 4 Group Members are not able to make any claim but are bound by the settlement. The explanation below applies to all other Group Members.

31. The precise amount of each type of Fixed Payment is not yet known and will be decided at the time that the Court considers whether to approve the proposed settlement. For those who choose the fixed payment process it is presently intended that the Applicants will ask the Court to determine the amount of the proposed Fixed Payments within the following ranges:

    a. Category 2 Group Members and Category 3(a) Group Members: between $750 and $1750 (**Fixed Payment A**).

    b. Category 1 Group Members and Category 3(b) Group Members: between $350 and $1000 if they can provide sufficient evidence that the Robodebt-raised Debt caused or contributed to financial loss (other than the Debt itself and interest on it) or compensable non-financial loss (such as a personal injury) (**Fixed Payment B**).

32. Category 5 Group Members are not eligible for a Fixed Payment and must request an Individual Assessment.

33. Any eligible person who requests an Individual Assessment, must give a Notice of Claim to the Scheme Administrator. Their claim will be assessed by the Scheme Administrator, who will apply applicable legal principles and the following claims assessment principles (which will prevail over the common law principles and, insofar as permitted by law, over any statute):

    a. **Balance of probabilities:** Where the Scheme Administrator must decide facts, they will do so on the balance of probabilities.

    b. **Financial loss:** Compensation will be available if a person can show that a Robodebt-raised Debt materially contributed to their financial loss. For the Settlement Scheme, financial loss does <u>not</u> include the Robodebt-raised Debt itself or any interest on it (because those types of loss have already been addressed).

    c. **Non-economic loss consequential on financial loss:** Compensation of up to $20,000 will be available to persons who can show that they have suffered non-economic loss (other than from personal injury), including distress and inconvenience, which is consequential on a financial loss referred to in sub-paragraph b above. Each Category 2 Group Member and Category 3(a) Group Member will be assumed to have suffered economic loss for this kind of loss.

    d. **Personal injury including a recognised psychiatric illness or condition:** Compensation of up to $50,000 will be available to persons who can show that they have suffered loss arising from personal injury, including physical injury or

a recognised psychiatric illness or condition (including the material aggravation of a pre-existing psychiatric illness or condition), to which a Robodebt-raised Debt materially contributed. Supporting material from a medical practitioner must also be provided. For claims for a psychiatric illness or condition, the illness or condition must also amount to a recognised psychiatric illness or condition.

e. **Aggravated damages:** Compensation akin to aggravated damages will be available if a person can show that specific aspects of the assertion of a Robodebt-raised debt significantly contributed to the aggravation of their harm and the compensation akin to aggravated damages claimed is of the type available in accordance with ordinary common law principles.

f. **Compensation by way of interest:** Compensation by way of interest (or interest) will be available in accordance with ordinary common law principles and/or statute.

g. **No double compensation:** There will be no double compensation (that is, multiple amounts being allowed as compensation for the same harm), in accordance with ordinary common law principles.

h. **Claims by estates/legal personal representatives:** Estates or legal personal representatives of a deceased Group Member may make claims relating to the forms of loss set out in sub-paragraphs b-e above suffered by the deceased Group Member. In addition, reasonable expenses of the funeral and burial arrangements of the deceased Group Member will be available if the death of the Group Member was materially contributed to by the assertion of a Robodebt-raised Debt.

i. **Persons in a close personal relationship with a deceased Group Member (Category 5):** Compensation for Category 5 Group Members will be available where: a Category 1 Group Member, Category 2 Group Member, Category 3(a) Group Member or Category 3((b) Group Member has died (the **deceased Group Member**); the Category 5 Group Member was in a close personal relationship with the deceased Group Member; the death of the deceased Group Member was materially contributed to by the assertion of a Robodebt-raised Debt; and the Category 5 Group Member has suffered a recognised psychiatric illness or condition that was materially contributed to by the death of the deceased Group Member; and the loss relates to the recognised psychiatric illness or condition.

34. The amount which an eligible person who claims via Individual Assessment may receive depends on the total amounts claimed by all eligible persons and is subject to the caps mentioned above. It may be less than the actual amount of their loss.

35. Group Members who are dissatisfied with the initial decision made by the Scheme Administrator following an Individual Assessment may request that their claim be re-assessed by the Scheme Administrator.

36. A copy of the proposed Settlement Scheme, which provides further detail, is available to download from Gordon Legal's website at: https://www.gordonlegal.com.au/.

H. LEGAL COSTS AND DEDUCTIONS FROM THE SETTLEMENT SUM

37. The Scheme Administrator will not require a Group Member to pay any out-of-pocket or other costs to participate in the settlement scheme, but a Group Member might incur some costs, such as when gathering evidence to support their claim.

Legal costs and lead applicant payments

38. The Court will be asked to approve the reasonable legal costs and disbursements incurred by the Knox Applicants and the Prygodicz Applicants up to an amount of $13,500,000 (inclusive of GST).

39. This includes all professional legal fees and disbursements incurred in the Robodebt Class Action Appeal to date and the estimated future costs for the approval of the proposed settlement. The Prygodicz Applicants have already been reimbursed in respect of the legal costs and disbursements incurred in the Prygodicz Proceeding up to and including the original settlement and those costs and disbursements will not be deducted from the Settlement Sum.

40. The Court will also be asked to approve payments of at most $25,000 to each of the Knox Applicants and Prygodicz Applicants, $200,000 in total, for their time and effort as lead applicants. If approved, this amount will be deducted from the Compensation Sum.

Administration Costs

41. The Court will be asked to approve an amount of up to $60,000,000 (inclusive of GST) for settlement administration costs.

42. This includes all the costs involved in administering the Settlement Scheme, assessing claims and distributing the Compensation Sum to Group Members.

43. The Court will decide who to appoint as Scheme Administrator. The Prygodicz Applicants and the Knox Applicants will ask the Court to appoint Gordon Legal as the Scheme Administrator as part of the application for approval of the proposed settlement. The Commonwealth has not agreed with Gordon Legal that it be the Scheme Administrator.

Payment to the Funder

44. The legal fees incurred by the Knox Applicants in the Robodebt Class Action Appeal and the potential adverse costs liabilities, have been jointly funded by Gordon Legal partly on a no win no fee basis and by a litigation funder, Omni Bridgeway (Fund 5) Lion Pty Ltd (the **Funder**).

45. Under the Litigation Funding Agreement entered into between the Funder, the Knox Applicants, and certain Group Members, the Funder is entitled to be paid a funding commission of 20**%** of any settlement or judgment sum, subject to Court approval.

46. At the settlement approval hearing, the Prygodicz Applicants and the Knox Applicants will ask the Court to make a Common Fund Order (**CFO**). A CFO is an order of the Court that provides for the Funder to receive a percentage of any settlement or judgment sum that the Court considers fair and reasonable, which is deducted from the settlement or judgment sum before distribution to Group Members. If a CFO is made, all Group Members will contribute to the Funder's funding commission.

47. Notwithstanding the 20% rate agreed by funded group members, it is intended that the Court will be asked to make a CFO providing for the Funder to be paid $71,250,000, being 15% of the Compensation Sum, or a lesser amount that the Court considers to be just.

48. The CFO (if ordered) compensates the Funder for the full risks associated with funding the Robodebt Class Action Appeal and agreeing to fund the reopened Robodebt Class Action, had the Robodebt Class Action Appeal been successful. Those risks include likely adverse costs had the case been unsuccessful.

49. The Court will decide whether the CFO is appropriate and, if so, the amount to be paid to the Funder (**Funding Commission**). This amount will be deducted from the Compensation Sum prior to settlement payments being distributed to eligible persons.

50. The estimated potential distribution amounts set out in this notice at paragraphs 31 (potential value of Fixed Payments) and 33 (compensation caps) above have been calculated on the assumption (among other matters) that the Court approves a Funding Commission of up to 20% of the Compensation Sum.

51. The Funder and Gordon Legal had agreed that, if permitted to do so by the Court, between 0% and 25% of the Funding Commission approved by the Court will be paid to Gordon Legal. However, Gordon Legal has elected to waive any entitlement under that agreement and will not claim a share of any Funding Commission approved by the Court.

I. CATEGORIES OF GROUP MEMBERS AND WHAT THE PROPOSED SETTLEMENT MEANS

52. If the settlement is approved by the Court, $475,000,000 (less the amounts paid to the Knox Applicants, the Prygodicz Applicants, and the Funding Commission), plus any interest which accrues on the Compensation Sum, will be made available to be paid to eligible Group Members.

53. The amount that an eligible Group Member might be eligible to receive will depend, in part, on their Category.

54. The table below explains how the proposed settlement will apply to each Category of Group Member:

Category	What the proposed settlement means for this category
Category 1	Category 1 Group Members may elect to pursue a Fixed Payment B or claim via an Individual Assessment. Category 1 Group Members will only be entitled to a Fixed Payment B if they satisfy the Scheme Administrator, on the balance of probabilities, that they have suffered additional financial or compensable non-financial loss that was materially contributed to by the assertion of a Robodebt-raised Debt.
Category 2	Category 2 Group Members may elect to receive a Fixed Payment A or claim via an Individual Assessment.
Category 3(a)	Category 3(a) Group Members may elect to receive a Fixed Payment A or claim via an Individual Assessment.
Category 3(b)	Category 3(b) Group Members may elect to pursue a Fixed Payment B or claim via an Individual Assessment. Category 3(b) Group Members will only be entitled to a Fixed Payment B if they satisfy the Scheme Administrator, on the balance of probabilities, that they have suffered financial or compensable non-financial loss that was materially contributed to by a Robodebt-raised Debt.
Category 4	Category 4 Group Members will be bound by the proposed settlement but are not eligible to make a claim.
Category 5	Category 5 Group Members will not be entitled to a Fixed Payment and will be required to claim via an Individual Assessment.

J. WHAT CATEGORY OF GROUP MEMBER AM I?

55. If you are a Group Member - other than a Category 5 Group Member or a Group Member who opted out of the Robodebt Class Action, you will have received a communication from the Commonwealth following approval of the first Robodebt Class Action settlement (in 2021 or 2022) as to which category you come within.

56. In general terms:

    a. Group Members in categories 2 and 3(a) did receive a payment as part of the first Robodebt Class Action settlement;

    b. Group Members in categories 1, 3(b) and 4 did not receive a payment as part of the first Robodebt Class Action settlement.

57. If you believe you are a Category 5 Group Member, you will be required to register your claim with Gordon Legal by completing a Registration Form and show that you fall within the terms of that Category to make a claim.

58. Group Members may fall within the definition of more than one Category if they had more than one Robodebt-raised Debt. If the proposed settlement is approved, a Group Member will be given a single Category by reference to the Category for which that Group Member would receive the highest amount from the Settlement Sum if the Group Member received a Fixed Payment. For example, if a Group Member is in both categories 1 and 2, they will be given category 2 for the purpose of the Settlement Scheme.

K. AM I ELIGIBLE TO PARTICIPATE IN THE PROPOSED SETTLEMENT?

59. Under the proposed settlement, Group Members, as well as the estates or legal personal representatives of deceased Group Members, may be eligible to participate in the Settlement Scheme.

60. The Court has made orders that only those persons who register with Gordon Legal by **6 March 2026** (**Registered Group Members**) can participate in the Settlement Scheme. This includes that Category 5 Group Members and people who apply for reinstatement as a Group Member do need to register if they wish to participate.

61. Further information about the options available to Group Members is set out in section **L** below.

L. WHAT ARE MY OPTIONS?

62. Group Members have four (4) options:

    a. **Option 1:** Register with Gordon Legal as a Registered Group Member by **6 March 2026.** More information about how to Register with Gordon Legal is in section **N** below.

    b. **Option 2:** Opt Out of the Robodebt Class Action and Robodebt Class Action Appeal and take no part in the Settlement Scheme. By opting out, you will cease to be a Group Member in the Robodebt Class Action and Robodebt Class Action Appeal. More information about how to lodge an Opt Out Notice is in section **O** below.

    c. **Option 3:** Register with Gordon Legal as a Registered Group Member <u>and</u> lodge a Notice of Objection to the proposed settlement. You should do this if you do not want the proposed settlement to go ahead. More information about how to lodge a Notice of Objection is in section **P** below.

    d. **Option 4:** Do nothing – if you do nothing, and the proposed settlement is approved by the Court, you will <u>not</u> be entitled to participate in the Settlement Scheme and will be bound by the proposed settlement. This means that a Group Member who does not Register as a Registered Group Member in accordance with Option 1 or 3 will not be able to have their claim assessed, either as part of the proposed settlement or otherwise.

63. If you have previously opted out of the Robodebt Class Action by filing an opt-out notice with the Court, you are no longer a Group Member and will need to lodge a Notice of Reinstatement as a Group Member and Register with Gordon Legal if you wish to participate in the Settlement Scheme. More information about how to lodge a Notice of Reinstatement as a Group Member is in section **Q** below.

M. HOW DO I BECOME A CATEGORY 5 GROUP MEMBER?

64. If you are a Category 5 Group Member and wish to participate in the proposed settlement, you can indicate your decision to participate by completing the Registration Form. The Court will consider any requests to participate as a Category 5 Group Member when it considers whether to approve the proposed settlement at the hearing commencing at **10.15am** on **22 June 2026** at the Federal Court of Australia.

65. Further information about how to Register is provided in section **N** below.

N. HOW DO I BECOME A REGISTERED GROUP MEMBER?

66. Only Registered Group Members will be eligible to participate in the proposed settlement.

67. To become a Registered Group Member, you must complete a Registration Form and return it to Gordon Legal by **6 March 2026.**

68. The Registration Form can be submitted by:

    a. completing the online Registration Form at: www.robodebtsettlement.com.au;

    b. downloading a copy of the Registration Form from the website of Gordon Legal (or requesting the Registration Form from Gordon Legal) and sending it by email to robodebt@gordonlegal.com.au or by post to the office of Gordon Legal, contact details for which are available from **www.gordonlegal.com.au**;

    c. completing the Registration Form during a teleconference with Gordon Legal.

69. If you are having difficulties completing the Registration Form, please contact Gordon Legal on 1300 001 356 or seek independent legal advice.

70. As part of the registration process you will need to provide consent to the collection, use and disclosure of your personal information, including by Gordon Legal, the Scheme Administrator and the Commonwealth, during the registration process and during the administration of the settlement scheme.

71. As part of the registration process, anyone acting on behalf of a group member or on behalf of an estate or as legal personal representative for a deceased group member, will need to demonstrate that they have authority to act in that capacity.

O. HOW DO I OPT OUT?

72. If you do not wish to be bound by the settlement, you can opt out of the proceedings by sending a completed Notice of Opting Out by a Group Member (**Annexure B**) by **6 March 2026** to Gordon Legal, who will then provide the notice to the Court and the Commonwealth. The Notice of Opting Out by a Group Member can be provided to Gordon Legal by:

    Email: robodebt@gordonlegal.com.au

    Post: Gordon Legal

    Level 5, 500 Bourke Street

    MELBOURNE VIC 3000

73. Group Members who complete a Notice of Opting Out by a Group Member will not be bound by the outcome of the Robodebt Class Action Appeal and will not be entitled to receive any compensation under the proposed settlement.

P. HOW DO I LODGE A NOTICE OF OBJECTION TO THE PROPOSED SETTLEMENT?

74. If you want to ask the Court not to approve the settlement, you must send a completed copy of the Notice of Objection (**Annexure A**) by **6 March 2026** to Gordon Legal, who will then provide the notice to the Court and to the Commonwealth. The Notice of Objection can be provided to Gordon Legal by email or post as follows:

    By email: robodebt@gordonlegal.com.au

    By post: Gordon Legal

    Level 5, 500 Bourke Street

    MELBOURNE VIC 3000

75. The Court will consider any objections submitted by Group Members when it considers whether to approve the proposed settlement at the hearing commencing at **10.15am** on **22 June 2026** in the Federal Court of Australia located at Owen Dixon Commonwealth Law Courts Building, 305 William Street, Melbourne, Victoria

76. If you think you might want to object to the proposed settlement or any aspect of it, you may want to get independent legal advice now (this cannot be from Gordon Legal).

77. If you want to, you can file written submissions with the Court, which further explain the reasons why you object to approval of the proposed settlement, and any evidence upon which you rely by **6 March 2026**. Written submissions and any evidence should be in approved Court forms. You are entitled to get an independent lawyer to help you.

78. You can also attend, or send a representative to, the hearing commencing at **10.15am** on **22 June 2026** when the Court will consider whether to approve the settlement and you or your representative may request permission from the Court to make oral submissions in support of your objection. The hearing will take place in the Federal Court of Australia located at Owen Dixon Commonwealth Law Courts Building, 305 William Street, Melbourne, Victoria. Information about how to attend will be available on the Court's website, and may include options to attend online or by telephone.

Q. HOW DO I LODGE A NOTICE OF REINSTATEMENT AS A GROUP MEMBER?

79. If you opted out of the Robodebt Class Action, you are no longer a Group Member. If you are not a Group Member, you cannot participate in the proposed settlement.

80. Group Members who have previously filed an opt out notice with the Court but who wish to participate in the proposed settlement can do so by lodging a Notice of Reinstatement as a Group Member (**Annexure C**) <u>and</u> registering with Gordon Legal by following the instructions in section **N** above.

81. Any Notice of Reinstatement as a Group Member must be submitted to Gordon Legal by no later than **6 March 2026**. Gordon Legal will then provide the Notices of Reinstatement as a Group Member it receives to the Court and to the Commonwealth. The Notice of Reinstatement as a Group Member can be provided to Gordon Legal by email or post as follows:

    By email: robodebt@gordonlegal.com.au

    By post: Gordon Legal

    Level 5, 500 Bourke Street

    MELBOURNE VIC 3000

82. The Court will consider any applications to be reinstated as a Group Member when it considers whether to approve the proposed settlement at the hearing commencing at **10.15am** on **22 June 2026** at the Federal Court of Australia.

R. WHAT IS THE PROCESS FOR THE COURT TO APPROVE THE SETTLEMENT?

83. The Court will decide whether to approve the settlement at a hearing to be held over two days, commencing at **10.15am** on **22 June 2026** in the Federal Court of Australia located at Owen Dixon Commonwealth Law Courts Building, 305 William Street, Melbourne, Victoria. You can attend that hearing if you wish to. Information about how to attend will be available on the Court's website and may include options to attend online or by telephone.

84. At that hearing, the Court will consider any evidence and submissions from the Applicants and the Commonwealth. The Court must decide whether the proposed

settlement is fair and reasonable in the interests of Group Members who will be bound by the settlement.

85. If the Court decides the proposed settlement is fair and reasonable in the interests of group members, the Court will approve the proposed settlement under s 33V of the *Federal Court of Australia Act 1976* (Cth).

S. RELEVANT DOCUMENTS AND FURTHER INFORMATION

86. Copies of certain documents filed in the Robodebt Class Action and the Robodebt Class Action Appeal, as well as a copy of the Deed of Settlement and the Settlement Distribution Scheme, can be obtained by:

    a. downloading them from Gordon Legal's website at: **https://www.gordonlegal.com.au**;

    b. inspecting them between 9.00am and 5.00pm at the office of Gordon Legal, contact details for which are available from **www.gordonlegal.com.au** or by calling 1300 001 356; or

    c. visiting a District Registry of the Federal Court in Sydney, Canberra, Melbourne, Brisbane, Adelaide, Perth, Hobart or Darwin and paying the appropriate inspection fee. The addresses for these registries are available at **www.fedcourt.gov.au**.

87. If there is anything of which you are unsure, you should check Gordon Legal's website for more information. You can also call Gordon Legal on 1300 001 356 or email robodebt@gordonlegal.com.au or seek your own legal advice.

ANNEXURE A NOTICE OF OBJECTION TO PROPOSED SETTLEMENT

ROBODEBT CLASS ACTION AND ROBODEBT CLASS ACTION APPEAL

Complete this form if you wish to object to the proposed settlement or any aspect of it.

Your Notice of Objection will be considered by the Court when it is determining whether or not to approve the proposed settlement.

If you wish to object to the proposed settlement, or any aspect of it, your Notice of Objection must be received by Gordon Legal by 4.00pm (AEST) on 6 March 2026.

Any objection received after this time may not be accepted.

If you do NOT wish to object to the proposed settlement, you do NOT need to return this form.

To: Gordon Legal

By email to: robodebt@gordonlegal.com.au

OR

By post to: Gordon Legal
Level 5, 500 Bourke Street
MELBOURNE VIC 3000

The person identified below gives notice that the person **OBJECTS** to the proposed settlement of the Robodebt Class Action and Robodebt Class Action Appeal.

A YOUR INFORMATION

Your full name (including any middle names):	
Customer Reference Number (CRN):	
Date of birth:	
Postal address (including post code):	

Residential address (including post code) if different to postal address:	
Email address:	
Telephone number:	
Previous contact details (if your contact details are not current with Services Australia and were different in 2022, please provide previous contact details).	

B IF YOU ARE REPRESENTING A GROUP MEMBER OR A DECEASED ESTATE

Your full name (including any middle names):	
Your postal address (including postcode):	
Your email address:	
Your telephone number:	
Capacity in which you represent Group Member or deceased estate:	
Full name of Group Member (including any middle names):	
Customer Reference Number (CRN) of Group Member:	
Date of birth of Group Member:	
Postal address of Group Member (including post code):	
Residential address of Group Member (including post	

code) if different to postal address:	
Email address of Group Member:	
Telephone number of Group Member:	
Previous contact details of Group Member (if their contact details were different in 2022, please provide previous contact details).	

C GROUNDS OF OBJECTION

My submissions in support of my objection to the proposed settlement are as follows [set out in the space below any submissions you wish to make, attach additional pages if necessary]:

D ATTENDANCE AT HEARING ON 22 AND 23 JUNE 2026 AT 10.15AM (AEST)

☐ I intend to appear before the Court at the hearing commencing at **10.15am** on **22 and 23 June 2026** (AEST). You may appear by video or telephone. Arrangements for appearances will be published by the Court on the day prior to the hearing.

[If you intend to appear, please complete the following]:

☐ I will appear on my own behalf.

	☐ I will be represented by a lawyer: _____
☐	I do not intend to appear, but wish for my submissions to be considered in my absence.

Signed:	
Name of person signing:	
Date:	

ANNEXURE B NOTICE OF OPTING OUT BY A GROUP MEMBER

Form 21
Rule 9.34

No. VID 1252 of 2019

Federal Court of Australia
District Registry: Victoria
Division: General

Katherine Prygodicz and others
Applicants

Commonwealth of Australia
Respondent

By post: Gordon Legal
Level 5, 500 Bourke Street
MELBOURNE VIC 3000

By email: robodebt@gordonlegal.com.au

OPT OUT FORM

The Court has ordered that any person wishing to opt out of the Robodebt Class Action and Robodebt Class Action Appeal must do so by 6 March 2026.

The person named below, a Group Member in this representative proceeding, gives notice under s 33J of the *Federal Court of Australia Act 1976* (Cth) that the person is opting out of the representative proceeding.

Name of the Group Member:	
Customer Reference Number (CRN):	
Date of Birth	
Postal address:	

Residential address (including post code) if different to postal address:	
Telephone number:	
Email address:	
Previous contact details (if your contact details are not current with Services Australia and were different in 2022, please provide previous contact details).	

If you are completing this form as the solicitor or representative of the Group Member:

Name of the person completing this form:	
Authority of the person completing this form:	
Postal address of the person completing this form:	
Telephone number:	
Email address:	

Signed:	
Name of person signing:	
Capacity of person signing (*e.g., Group Member, Lawyer for the Group Member*)	
Date:	

ANNEXURE C NOTICE OF REINSTATEMENT AS GROUP MEMBER

No. VID 1252 of 2019

Federal Court of Australia
District Registry: Victoria
Division: General

Katherine Prygodicz and others
Applicants

Commonwealth of Australia
Respondent

By post: Gordon Legal
Level 5, 500 Bourke Street
MELBOURNE VIC 3000

By email: robodebt@gordonlegal.com.au

REQUEST TO BE REINSTATED AS A GROUP MEMBER

The person identified below gives that the person seeks to be reinstated as a Group Member in the Robodebt Class Action (VID 1252 of 2019).

A YOUR INFORMATION

Your full name (including any middle names):	
Customer Reference Number (CRN):	
Date of birth:	
Postal address (including post code):	

Residential address (including post code) if different to postal address:	
Email address:	
Telephone number:	
Previous contact details of Group Member (if your contact details are not current with Services Australia and were different in 2022, please provide previous contact details).	

B IF YOU ARE REPRESENTING A GROUP MEMBER OR DECEASED ESTATE

Full name of Group Member (including any middle names):	
Customer Reference Number (CRN) of Group Member:	
Postal address of Group Member (including post code):	
Residential address of Group Member (including post code) if different to postal address:	

C GROUNDS FOR REINSTATEMENT AS A GROUP MEMBER

My submissions in support of my request to be reinstated as a Group Member in this proceeding are as follows [set out in the space below any submissions you wish to make, attach additional pages if necessary]:

D ATTENDANCE AT HEARING ON 22 and 23 JUNE 2026 AT 10.15AM (AEST)

☐ I intend to appear before the Court at the hearing commencing at **10.15am** on **22 and 23 June 2026** (AEST). You may appear by video or telephone. Arrangements for appearances will be published by the Court on the day prior to the hearing. [If you intend to appear, please complete the following]: ☐ I will appear on my own behalf. ☐ I will be represented by a lawyer: _____
☐ I do not intend to appear, but wish for my submissions to be considered in my absence.

Signed:	
Name of person signing:	
Date:	